



National Insurance Act 1967

1967 CHAPTER 73

An Act to amend the provisions of the National Insurance Act 1965, the National Insurance (Industrial Injuries) Act 1965 and the Industrial Injuries and Diseases (Old Cases) Act 1967 as to contributions, benefit and insurable employments; to provide for the set-off of certain overpayments; to confer temporary power to increase family allowances by order; and for connected purposes. [27th July 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In the Insurance Act—

- (a) for the provisions set out in Schedule 1 (rates of flat-rate contributions) there shall be substituted the provisions set out in Schedule 1 to this Act;
- (b) for the provisions set out in Schedule 3 (rates of periodical benefits and of increases for dependants) there shall be substituted the provisions set out in Schedule 2 to this Act;
- (c) for the provisions set out in Schedule 4 (amounts of grants) there shall be substituted the provisions set out in Schedule 3 to this Act (being provisions increasing the amount of death grant);
- (d) in section 10(1)(a)(iii) (which provides for excepting insured persons from liability to pay contributions when their income does not exceed two hundred and sixty pounds a year) for the words "two hundred and sixty pounds" there shall be substituted the words "three hundred and twelve pounds";

Amendments
as to
contributions
and benefit
under
Insurance Act.

- (e) subject to paragraph 5 of Schedule 7 to this Act, in sections 31(1), 34(1)(a) and 34(1)(b) (which provide for the weekly rate of a retirement pension of, or of the wife or widow of, a person who has paid flat-rate contributions in respect of a period after his attaining pensionable age to be increased in certain circumstances by a specified amount for every twelve of those contributions) for the word "twelve" there shall in each case be substituted the word "nine".

(2) The provisions specified in Schedule 4 to this Act shall have effect subject to the amendments so specified.

Amendments
of Industrial
Injuries Act
as to
contributions,
benefit and
insurable
employments.

2.—(1) In the Industrial Injuries Act—

- (a) for the Table set out in Part I of Schedule 2 (weekly rates of contribution payable by insured persons and employers) there shall be substituted the Table set out in Schedule 5 to this Act ;
- (b) for the provisions of Schedule 3 (rate or amount of benefit etc.) there shall be substituted the provisions set out in Schedule 6 to this Act ;
- (c) in subsection (3) of section 19, for the words "one pound" (being the weekly rate of a pension payable under that section to a widow in a case which does not fall within paragraphs (a) to (e) of that subsection) there shall be substituted the words "one pound ten shillings".

(2) The Minister may by regulations make provision with respect to employment under a contract of service on board a ship or vessel in a capacity other than that of master or a member of the crew or on board an aircraft in a capacity other than that of pilot, commander, navigator or member of the crew substituting, in such cases or classes of case as may be specified in the regulations—

- (a) for the circumstances set out in paragraph 2(1)(b) or 8(1)(b) of Part I of Schedule 1 to the Industrial Injuries Act as circumstances in which such employment is an insurable employment, or
- (b) for the corresponding circumstances set out in paragraph 2(b) or 4(b) of Part II of that Schedule as circumstances in which such employment is an excepted employment,

such circumstances as may be specified in the regulations.

3.—(1) In the Old Cases Act—

Amendments
as to benefit
under Old
Cases Act.

- (a) in section 2(6)(c), for the words “two pounds seven shillings and sixpence” (being the maximum weekly rate of a lesser incapacity allowance in supplementation of workmen’s compensation) there shall be substituted the words “two pounds fifteen shillings”;
- (b) in section 7(2)(b), for the words “two pounds ten shillings” (being the weekly rate of an allowance by virtue of section 5(1)(a) of that Act in respect of disablement which is not total) there shall be substituted the words “two pounds fifteen shillings”.

(2) With a view to securing that section 5 of the Old Cases Act (which enables schemes to make provision for industrial diseases benefit in respect of employment before 5th July 1948), in addition to applying to the diseases mentioned in paragraphs (a), (b) and (c) of subsection (2) of that section, applies to any other disease which is a malignant or potentially malignant neoplasm and is for the time being prescribed for the purposes of Part IV of the Industrial Injuries Act as it applies to any disease such as is mentioned in the said paragraph (c) (except in relation to a person who died as a result of any such other disease before the passing of this Act), the said section 5 shall have effect subject to the following amendments, namely—

- (a) in subsection (1)(c), at the end there shall be added the words “so, however, that in relation to such a disease as is mentioned in subsection (2)(d) of this section the foregoing provisions of this paragraph shall have effect as if for the reference to 31st December 1949 there were substituted a reference to the date of the passing of the National Insurance Act 1967”;
- (b) in subsection (2), after paragraph (c) there shall be inserted the following paragraph:—
 - “(d) any other disease which is a malignant or potentially malignant neoplasm and is for the time being prescribed for the purposes of Part IV of the Industrial Injuries Act;”
- (c) in subsection (2), after the words “paragraph (c)” there shall be inserted the words “or (d)”.

(3) In section 14(1) of the Old Cases Act, in the definition of “pneumoconiosis”, after the word “treated” there shall be inserted the words “for the purposes of any scheme under section 2 or 5 of this Act”; and in section 14(2) of that Act for the words “an allowance under the said section 2 or 5” there shall be substituted the words “any such scheme”.

Supple-
mentary
schemes—
set-off of
overpayments.

4.—(1) Where a person who has received a payment in respect of any period under a supplementary scheme within the meaning of section 46 of the Insurance Act or section 82 of the Industrial Injuries Act is subsequently found to be entitled in respect of that period to a payment by way of benefit the entitlement to or payment of which disentitles him to the whole or part of the amount of the payment under the scheme, any payment by way of that benefit may, at the discretion of the Minister, be abated by the amount of the overpayment under the scheme or so much thereof as has not been repaid to the fund out of which it was made.

(2) Where a person has received in respect of any period a payment by way of benefit which disentitles him to a payment which would otherwise be payable to him in respect of that period under such a scheme as aforesaid and he is subsequently found not to have been entitled to the whole or part of the amount of that payment of benefit, any payment under the scheme in respect of that period may, at the discretion of the person by whom the payment falls to be made, be abated by the amount of benefit overpaid or so much thereof as has not been—

(a) repaid or otherwise recovered, or

(b) treated as having been paid on account of any other benefit payable in respect of that period or on account of an allowance under the Family Allowances Act 1965 so payable.

1965 c. 53.

(3) The amount by which a payment to any person is abated under subsection (1) or (2) of this section on account of some other payment to that person shall not be otherwise recoverable from that person and shall be made good out of the fund out of which the abated payment fell to be made to the fund out of which that other payment was made.

(4) In this section, the expression “benefit” means benefit under the Insurance Act or under the Industrial Injuries Act.

Temporary
power to
increase
family
allowances
by order.

5.—(1) Subject to subsection (2) of this section, the Minister may with the consent of the Treasury by order provide that, as from such date as may be specified in the order, any allowances under the Family Allowances Act 1965 in respect of such children in a family as may be so specified shall for so long as the order remains in force be increased by such amount or respective amounts as may be so specified.

(2) Any order under this section shall be made by statutory instrument, which shall be subject to annulment in pursuance of

a resolution of either House of Parliament, and may be revoked by a subsequent order under this section, but—

- (a) no such order providing for an increase of allowances shall be made after the expiration of the period of three months beginning with the date of the passing of this Act; and
 - (b) any order in force under this section on 8th April 1968 is hereby revoked as from the end of that day except as respects any period falling before the end of that day.
- (3) An order under this section may—
- (a) make provision for—
 - (i) such alteration in the weekly rate of any allowance or increase of benefit in respect of a child under the Insurance Act or the Industrial Injuries Act or of the contributions in respect of a child referred to in section 3(2) of the said Act of 1965 or in the proviso to paragraph 1(1) of the Schedule to that Act, and
 - (ii) such modifications of the provisions relating to allowances or increases of benefit in respect of children of section 41(4) of the Insurance Act, Schedule 5 to the Industrial Injuries Act or Schedule 7 to this Act or of any regulations made under the said section 41(4), Schedule 5 or Schedule 7 or under section 55 of the Insurance Act or section 34 of the Industrial Injuries Act,as may appear to the Minister to be appropriate in consequence of any increase such as is referred to in subsection (1) of this section;
 - (b) make such provision for purposes corresponding to the purposes of the said Schedule 7 as may appear to the Minister to be necessary or expedient in connection with the coming into force or revocation of any such order.

6.—(1) Subject to the provision made by section 85 of the *Expenses*. Insurance Act for reimbursement out of the National Insurance Fund or by section 61 of the Industrial Injuries Act for reimbursement out of the Industrial Injuries Fund, there shall be paid out of moneys provided by Parliament any increase attributable to this Act in the expenses of the Minister or any other government department which are so payable under either of those sections.

(2) There shall be paid out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums payable out of such moneys under the Family Allowances 1965 c. 53. Act 1965.

Citation,
commence-
ment, extent,
interpretation,
etc.

7.—(1) This Act may be cited as the National Insurance Act 1967.

(2) This Act, so far as it relates to the subject matter of the following Acts respectively—

(a) may be cited together with the National Insurance Acts 1965 and 1966 as the National Insurance Acts 1965 to 1967;

(b) shall be included in the Acts which may be cited together as the National Insurance (Industrial Injuries) Acts 1965 to 1967;

(c) may be cited together with the Old Cases Act as the Industrial Injuries and Diseases (Old Cases) Acts 1967.

(3) Schedule 7 to this Act shall have effect with respect to the commencement of this Act and to the transitory and other matters there dealt with.

(4) Without prejudice to paragraph 8 of the said Schedule 7 and to the operation by virtue of that paragraph, in relation to any matters arising out of this Act, of any provisions relating to Northern Ireland of the Acts referred to in that paragraph, this Act shall not extend to Northern Ireland.

(5) In this Act—

1965 c. 51.

(a) “the Insurance Act” means the National Insurance Act 1965;

1965 c. 52.

(b) “the Industrial Injuries Act” means the National Insurance (Industrial Injuries) Act 1965;

1967 c. 34.

(c) “the Old Cases Act” means the Industrial Injuries and Diseases (Old Cases) Act 1967.

(6) Any reference in this Act to any other enactment shall, except so far as the context otherwise requires, be construed as a reference to that enactment as amended or applied by or under any other enactment, including any enactment contained in this Act.

SCHEDULES

Section 1(1)

SCHEDULE 1

PROVISIONS TO BE SUBSTITUTED IN SCHEDULE 1 TO INSURANCE ACT

RATES OF FLAT-RATE CONTRIBUTIONS

PART I

Employed Persons

Description of employed person 1	Weekly Rate of Contribution	
	Unless by virtue of a non-participating employment 2	If by virtue of a non-participating employment 3
	s. d.	s. d.
Men between the ages of 18 and 70 (other than men over the age of 65 who have retired from regular employment)—		
Earning remuneration at a weekly rate exceeding £6	12 1½	14 6½
Earning remuneration at a weekly rate of £6 or less	7 0½	8 3½
Women between the ages of 18 and 65 (other than women over the age of 60 who have retired from regular employment)—		
Earning remuneration at a weekly rate exceeding £6	10 6½	12 0½
Earning remuneration at a weekly rate of £6 or less	6 0½	6 9½
Boys under the age of 18	8 3½	
Girls under the age of 18	6 9½	

For the purposes of this Part and Part II of this Schedule a person shall be deemed to be earning remuneration at a weekly rate of £6 or less if, but only if, his remuneration does not include the provision of board and lodging by the employer and the rate of the remuneration neither exceeds, nor is deemed in accordance with regulations made under section 114(5) of this Act to exceed, £6 a week, and to be earning remuneration at a weekly rate exceeding £6 in any other case.

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PART II
Employers

Description of employed person 1	Weekly Rate of Contribution		
	Unless by virtue of a non-participating employment 2	If by virtue of a non-participating employment 3	
Men over the age of 18—	s. d.	£	s. d.
Earning remuneration at a weekly rate exceeding £6 or not being liable to pay a contribution as an employed person...	13 7½	16	0½
Earning remuneration at a weekly rate of £6 or less and being liable to pay a contribution as an employed person ...	18 8½	1	2 3½
Women over the age of 18—			
Earning remuneration at a weekly rate exceeding £6 or not being liable to pay a contribution as an employed person...	11 10½	13	4½
Earning remuneration at a weekly rate of £6 or less and being liable to pay a contribution as an employed person ...	16 4½	18	7½
Boys under the age of 18	9 2½		
Girls under the age of 18	7 7½		

For the purposes of this Part of this Schedule a person over pensionable age, not being an insured person, shall be treated as an employed person if he would be an insured person were he under pensionable age and would be an employed person were he an insured person.

PART III
Self-Employed Persons

Description of self-employed person 1	Weekly Rate of Contribution 2
Men between the ages of 18 and 70 (other than men over the age of 65 who have retired from regular employment)	s. d. 18 2
Women between the ages of 18 and 65 (other than women over the age of 60 who have retired from regular employment)	15 1
Boys under the age of 18	10 4
Girls under the age of 18	8 7

PART IV
Non-Employed Persons

SCH. 1

Description of non-employed person 1	Weekly Rate of Contribution 2
Men between the ages of 18 and 65	s. d. 13 9
Women between the ages of 18 and 60	10 9
Boys under the age of 18	7 10
Girls under the age of 18	6 1

SCHEDULE 2

Section 1(1).

PROVISIONS TO BE SUBSTITUTED IN SCHEDULE 3 TO INSURANCE ACT

RATES OF PERIODICAL BENEFITS AND OF INCREASES FOR DEPENDANTS

1 Description of Benefit	2 Weekly rate	3 Increase for only, elder or eldest quali- fying child	4 Increase for second quali- fying child	5 Increase for each additional quali- fying child	6 Increase for adult dependant (where payable)
	£ s. d.	£ s. d.	£ s. d.	£ s. d.	£ s. d.
1. Unemployment or sick- ness benefit under s. 19(2)—					
(a) in the case of a person over the age of 18, not being a married woman ...	4 10 0	1 5 0	17 0	17 0	2 16 0
(b) in the case of a person under the age of 18, not being a married woman—					
(i) during any period during which that person is entitled to an increase of benefit in respect of a child or adult dependant ...	4 10 0	1 5 0	17 0	17 0	2 16 0
(ii) during any other period ...	2 10 0	—	—	—	—
(c) in the case of a married woman over the age of 18—					
(i) during any period during which she is en- titled to an in- crease of benefit					

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1	2	3	4	5	6
Description of Benefit	Weekly rate	Increase for only, elder or eldest quali- fying child	Increase for second quali- fying child	Increase for each additional quali- fying child	Increase for adult dependant (where payable)
	£ s. d.	£ s. d.	£ s. d.	£ s. d.	£ s. d.
1. Unemployment or sick- ness benefit under s. 19(2) —cont.					
in respect of her husband, or dur- ing which she is not residing with her husband nor is he contributing to her mainten- ance at not less than the relevant rate	4 10 0	1 5 0	17 0	17 0	2 16 0
(ii) during any other period	3 2 0	1 5 0	17 0	17 0	2 16 0
(d) in the case of a married woman under the age of 18—					
(i) during any period during which she is en- titled to an in- crease of benefit in respect of her husband, or dur- ing which she is entitled to an in- crease of benefit in respect of a child or an adult dependant other than her husband and she is not residing with her husband nor is he contributing to her maintenance at not less than the relevant rate	4 10 0	1 5 0	17 0	17 0	2 16 0
(ii) during any other period during which she is en- titled to an in- crease of benefit in respect of a child or adult dependant ...	3 2 0	1 5 0	17 0	17 0	2 16 0
(iii) during any other period ...	2 10 0	—	—	—	—
2. Unemployment or sickness benefit at a weekly rate determined under s. 19(3)	—	1 5 0	17 0	17 0	2 16 0
3. Maternity allowance ...	4 10 0	1 5 0	17 0	17 0	2 16 0

SCH. 2

1	2	3	4	5	6
Description of Benefit	Weekly rate	Increase for only, elder or eldest qualifying child	Increase for second qualifying child	Increase for each additional qualifying child	Increase for adult dependant (where payable)
	£ s. d.	£ s. d.	£ s. d.	£ s. d.	£ s. d.
4. Widow's allowance ...	6 7 0	2 2 6	1 14 6	1 12 6	—
5. Widowed mother's allowance ...	4 10 0	2 2 6	1 14 6	1 12 6	—
6. Widow's pension ...	4 10 0	—	—	—	—
7. Guardian's allowance ...	2 2 6	—	—	—	—
8. Retirement pension—					
(a) where the pension is payable to a woman by virtue of her husband's insurance and he is alive ...	2 16 0	1 5 0	17 0	17 0	—
(b) in any other case ...	4 10 0	1 5 0	17 0	17 0	2 16 0
9. Child's special allowance	2 2 6	—	1 14 6	1 12 6	—

1. In paragraphs 1(c)(i) and 1(d)(i) of this Schedule "the relevant rate" means a weekly rate equal to the difference under this Schedule between the rates of benefit applying if the husband is, and if he is not, contributing to the wife's maintenance at not less than the relevant rate.

2. In paragraph 2 of this Schedule, column 6 shall have effect subject to section 43(3)(b) of this Act.

SCHEDULE 3

Section 1(1).

PROVISIONS TO BE SUBSTITUTED IN SCHEDULE 4 TO INSURANCE ACT

AMOUNTS OF GRANTS

Description of Grant	Amount
	£ s. d.
1. Maternity grant ...	22 0 0
2. Death grant, where the person in respect of whose death the grant is paid was at his death—	
(a) under the age of 3...	9 0 0
(b) between the ages of 3 and 6 ...	15 0 0
(c) between the ages of 6 and 18 ...	22 10 0
(d) over the age of 18—	
(i) if on 5th July 1948 that person had attained the age of 55 in the case of a man or 50 in the case of a woman ...	15 0 0
(ii) in any other case ...	30 0 0

Section 1(2).

SCHEDULE 4

FURTHER AMENDMENTS OF INSURANCE ACT

Sickness benefit—relief from disqualification

1. With a view to removing the power to disqualify a person for the receipt of sickness benefit under section 19 of the Insurance Act by reason of failure to give such a notice of his becoming or again becoming incapable of work as is mentioned in paragraph (b) of section 49(3) of that Act, the following provisions are hereby repealed or revoked, namely—

(a) in section 21(4) of that Act, the words “or give a notice”;

(b) in the said section 49(3)—

(i) the words from “and” to the end of paragraph (b); and

(ii) in the proviso, the words “or notice may be given”;

1966 c. 6.

(c) in section 2(8)(a) of the National Insurance Act 1966, the words “or give a notice”;

S.I. 1967/330.

(d) in paragraphs (1) and (2) of regulation 10 of the National Insurance (Unemployment and Sickness Benefit) Regulations 1967, the words “or give a notice”.

Maternity allowance—calculation of daily rate

2. In section 24 of the Insurance Act (which relates to maternity allowance) at the end there shall be added the following subsection:—

“(9) Where for any purpose it is necessary to calculate the daily rate of a maternity allowance—

(a) Sunday or such other day in each week as may be prescribed shall be disregarded; and

(b) the amount payable by way of that allowance for any other day shall be taken to be one-sixth of the weekly rate of the allowance.”

Retirement pensions of certain widows

3. With a view to ensuring that a widow to whom subsection (3) of section 33 of the Insurance Act applies receives the maximum amount by way of retirement pension without the necessity of making any election, for that subsection there shall be substituted the following:—

“(3) Subject to paragraph 6 of Schedule 11 to this Act, where immediately before attaining pensionable age a woman is a widow, then, in calculating for the purpose of her right under the said section 30 to a retirement pension by virtue of her own insurance the yearly average of the contributions paid by or credited to her, there shall from time to time be treated as so paid or credited either—

(a) for each contribution year falling wholly or partly before the death of her husband (being, if she has been married more than once, her last husband); or

- (b) for each contribution year falling wholly or partly during the period of their marriage, SCH. 4.
- a number of contributions either—
- (i) equal to the yearly average (ascertained as at the date of his attaining pensionable age or dying under that age) of the contributions paid by or credited to the husband ; or
 - (ii) equal to the number of contributions actually paid by or credited to her for that year,
- whichever will for the time being enable her to receive the greatest amount by way of pension."

Child's special allowance—alternative condition of entitlement

4. With a view to providing an alternative condition for the receipt of child's special allowance to that specified in paragraph (c) of section 38 of the Insurance Act, for that paragraph there shall be substituted the following:—

"(c) either—

- (i) that husband had before his death been contributing at not less than the prescribed weekly rate to the cost of providing for that child ; or
- (ii) at the date of that husband's death, she was entitled under an order of a court, trust or agreement which she has taken reasonable steps to enforce to receive whether from that husband or from another person payments in respect of that child at not less than that weekly rate provided or procured by that husband : ”.

SCHEDULE 5

Section 2(1).

PROVISIONS TO BE SUBSTITUTED IN PART I OF SCHEDULE 2 TO INDUSTRIAL INJURIES ACT

WEEKLY RATES OF CONTRIBUTIONS PAYABLE BY INSURED PERSONS AND EMPLOYERS

Class of insured person to whom rate applies	Weekly rate of contribution	
	By the insured person 2	By the employer 3
1		
Men over the age of 18	10d.	11d.
Women over the age of 18	7d.	8d.
Boys under the age of 18	5d.	5d.
Girls under the age of 18	3d.	4d.

Section 2(1).

SCHEDULE 6

PROVISIONS TO BE SUBSTITUTED IN SCHEDULE 3 TO INDUSTRIAL
INJURIES ACT

RATE OR AMOUNT OF BENEFIT, ETC.

Description of benefit, etc.	Amount
1. Injury benefit under s. 11 (weekly rate).	(a) for any period during which the beneficiary is over the age of 18 or is entitled to an increase of benefit in respect of a child or adult dependant ... £7 5s. (b) for any period during which the beneficiary is between the ages of 17 and 18 and not entitled as aforesaid ... £5 1s. 3d. (c) for any period during which the beneficiary is under the age of 17 and not entitled as aforesaid ... £4
2. Maximum disablement gratuity under s. 12(3).	£500.
3. Disablement pension under s. 12(5) (weekly rate).	For the several degrees of disablement set out in column 1 of the following Table, for the following periods respectively the respective amounts set out in the following columns respectively of that Table, namely— (a) for any period such as is mentioned in paragraph 1(a) of this Schedule, column 2; (b) for any period such as is mentioned in paragraph 1(b) of this Schedule, column 3; (c) for any period such as is mentioned in paragraph 1(c) of this Schedule, column 4.

TABLE

Degree of disablement 1	Weekly rate		
	2	3	4
<i>per cent.</i>	£ s. d.	£ s. d.	£ s. d.
100	7 12 0	5 5 0	4 5 0
90	6 17 0	4 14 6	3 16 6
80	6 1 6	4 4 0	3 8 0
70	5 6 6	3 13 6	2 19 6
60	4 11 0	3 3 0	2 11 0
50	3 16 0	2 12 6	2 2 6
40	3 1 0	2 2 0	1 14 0
30	2 5 6	1 11 6	1 5 6
20	1 10 6	1 1 0	17 0

SCH. 6.

Description of benefit, etc.	Amount
4. Unemployability supplement under s. 13 (increase of weekly rate of disablement pension).	(a) for any period such as is mentioned in paragraph 1(a) of this Schedule ... £4 10s. (b) for any period such as is mentioned in paragraph 1(b) or (c) of this Schedule ... £2 10s.
5. Maximum increase under s. 14 of weekly rate of disablement pension in cases of special hardship.	£3 1s., or the amount (if any) by which the weekly rate of the pension, apart from any increase under s. 15, 17 or 18 of this Act or under section 6 of the National Insurance Act 1966, falls short of £7 12s., whichever is the less.
6. Maximum increase under s. 15 of weekly rate of disablement pension where constant attendance needed.	(a) except in cases of exceptionally severe disablement ... £3 (b) in any case ... £6
7. Increase under s. 17 of weekly rate of injury benefit or disablement pension in respect of children.	(a) in respect of only, elder or eldest child of beneficiary's family £1 5s. (b) in respect of each additional child of beneficiary's family... 17s.
8. Increase under s. 18 of weekly rate of injury benefit or disablement pension in respect of adult dependant.	£2 16s.
9. Widow's pension under s. 19— (a) weekly rate where payable by virtue of s. 19(3) (a)–(e). (b) maximum higher weekly rate for prescribed period after deceased's death.	£5 1s. £6 7s.
10. Widower's pension under s. 20 (weekly rate).	£5 1s.
11. Allowance under s. 21 in respect of children of deceased's family— (a) weekly rate of allowance under s. 21(1). (b) increase under s. 21(2)	(i) in respect of only, elder or eldest qualifying child ... £1 5s. (ii) in respect of each additional qualifying child ... 17s. (i) in respect of only, elder or eldest qualifying child ... 17s. 6d. (ii) in respect of second qualifying child ... 17s. 6d. (iii) in respect of each additional qualifying child ... 15s. 6d.

SCH. 6.

Description of benefit, etc.	Amount
12. Maximum under s. 29(1)(a) of aggregate of weekly benefits payable for successive accidents.	(a) for any period such as is mentioned in paragraph 1(a) of this Schedule £7 12s. (b) for any period such as is mentioned in paragraph 1(b) of this Schedule— (i) apart from any increase under s. 14 £5 5s. (ii) including any such increase £7 12s. (c) for any period such as is mentioned in paragraph 1(c) of this Schedule £4 5s.

Section 7(3).

SCHEDULE 7

COMMENCEMENT, TRANSITORY PROVISIONS AND CONSTRUCTION

General provisions for appointed days

1.—(1) The provisions of this Act other than section 5 shall not come into force until such day as the Minister may by order appoint, and different days may be appointed for different purposes of this Act or for the same purposes in relation to different cases or classes of case.

(2) Any such order may—

(a) if the day thereby appointed is appointed for some only of the purposes of this Act or in relation only to some cases or classes of case, contain such incidental or supplemental provisions as appear to the Minister to be necessary or expedient as respects the period or any part of the period when this Act is to have a partial operation only, and, in particular, provisions modifying and supplementing, in relation to the period to which the order is to apply, the provisions of this Act or any Act amended by this Act;

(b) be varied or revoked by a subsequent order under this subparagraph.

(3) Section 107(4) of the Insurance Act (which provides for orders under that Act to be subject to annulment in pursuance of a resolution of either House of Parliament) shall not apply to any order under this paragraph, but any such order shall be laid before Parliament after being made.

Effect of awards made before, or in respect of the period beginning before, appointed or prescribed day

2.—(1) Where, in the case of any benefit under the Insurance Act, the Industrial Injuries Act or the Old Cases Act the weekly rate of which is increased under or by virtue of this Act to a fixed higher amount, an award of that benefit has been made, whether

SCH. 7.

before or after the passing of this Act, before the increase date, then, subject to such exceptions or conditions as may be prescribed by regulations made by the Minister, the benefit shall, without any claim being made therefor, become payable (except as respects any period falling before the increase date) at the higher weekly rate, and the award shall have effect accordingly.

(2) Where any such award, or an award of any benefit under any of the Acts aforesaid of which the maximum weekly rate is increased under or by virtue of this Act, is made—

- (a) after the increase date has been appointed or prescribed ; and
- (b) before the increase date,

the award may provide for the benefit to be paid, as from the increase date, at the higher weekly rate or, as the case may be, at any weekly rate within the higher maximum rate.

(3) In the foregoing provisions of this paragraph, "the increase date" means the day appointed under paragraph 1 of this Schedule or prescribed by regulations under the Act in question for the payment of benefit of the description in question at a higher weekly rate or within a higher maximum weekly rate by virtue of this Act or any regulations made in consequence thereof.

Variation of disablement gratuities

3. Any regulations made in consequence of this Act varying the scale of disablement gratuities prescribed under section 12(3) of the Industrial Injuries Act may provide that the scale as varied shall apply only in cases where the period taken into account by the assessment of the extent of the disablement in respect of which the gratuity is awarded begins or began after such day as may be prescribed.

Benefit in respect of children or adult dependants

4. Where, in the case of any payment under the Insurance Act or the Industrial Injuries Act in respect of a child or adult dependant for a period beginning on or after the day appointed under paragraph 1 of this Schedule in relation to the provisions of this Act increasing the amount of that payment, account falls to be taken—

- (a) under section 42(1)(b) of the Insurance Act or section 17(4)(b) of the Industrial Injuries Act of contributions to the cost of providing for that child, or
- (b) under subsection (1)(a)(ii) of section 43 of the Insurance Act or paragraph (a)(ii) of section 18(1) of the Industrial Injuries Act, or under regulations made by virtue of subsection (2)(c) of the said section 43 or paragraph (d) of the said section 18(1), of contributions to the maintenance of that adult dependant,

for a period before that day, the amount with which the weekly rate of those contributions is to be compared under the provision or regulations in question shall be that with which it would have fallen to be compared if this Act had not been passed.

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Retirement pensions

5. Section 1(1)(e) of this Act shall not affect the operation of section 31(1), 34(1)(a) or 34(1)(b) of the Insurance Act as respects contributions paid for contribution weeks beginning before such day as may be appointed in relation to the said section 1(1)(e) under paragraph 1 of this Schedule ; but regulations may make transitional provision for cases where the relevant contributions so paid do not make up twelve or a multiple of twelve contributions (including provision for making up the contributions so paid to a multiple of twelve with the aid of contributions paid for later weeks, or making up the contributions paid for later weeks to a multiple of nine with the aid of the first-mentioned contributions).

Death grants

6. The provisions of this Act increasing death grants shall not affect the amount of such a grant where the death occurred before the day appointed in relation to those provisions under paragraph 1 of this Schedule.

*Transitory provisions as to certain orders,
regulations and schemes*

7. The following enactments, namely—

- (a) section 107(1) of the Insurance Act and section 4(8)(a) of the Old Cases Act (which provide that certain orders, regulations or schemes shall not be made unless a draft thereof has been laid before Parliament and approved by resolution of each House) and section 1(7) of the Police Pensions Act 1948 (so far as it makes similar provision) ;
- (b) section 108 of the Insurance Act (which requires a preliminary draft of any regulations under that Act to be submitted to the National Insurance Advisory Committee) ;
- (c) section 62(2) of the Industrial Injuries Act (which requires any proposal to make regulations under that Act to be referred to the Industrial Injuries Advisory Council for consideration and advice),

1948 c. 24.

shall not apply to any order, regulations or scheme contained in a statutory instrument made before the expiration of the period of six months beginning with the date of the passing of this Act if that instrument states that it is made in consequence of this Act ; but any such order, regulations or scheme to which the said section 107(1), 4(8)(a) or 1(7) would otherwise apply shall instead be subject to annulment in pursuance of a resolution of either House of Parliament.

Construction

8. This Act—

- (a) in so far as it relates to the subject matter of the National Insurance Acts 1965 and 1966 shall be construed as one with the Insurance Act ;
- (b) in so far as it relates to the subject matter of the National Insurance (Industrial Injuries) Acts 1965 to 1967 shall be construed as one with the Industrial Injuries Act ;

(c) in so far as it relates to the subject matter of the Family Allowances Act 1965 shall be construed as one with that Act ; SCH. 7 1965 c. 53.

(d) in so far as it relates to the subject matter of the Old Cases Act shall be construed as one with that Act ;

but nothing in this paragraph shall cause section 46(6) of the Insurance Act or section 82(3) of the Industrial Injuries Act to prevent section 4 of this Act from applying to or having effect in relation to or for the purposes of any scheme such as is mentioned in the said section 4.